

## **Calendar Line 9**

**Case Name:** *California Plus Engineering, Inc. v. County of Santa Clara*

**Case No.:** 21CV376991

This is the earliest of five pending cases in this court involving the same construction project. Plaintiff California Plus Engineering, Inc. (“CPE”) was the general contractor on the project and has sued the owner, defendant County of Santa Clara (the “County”), for payment of a portion of the \$25 million contract price. After this case was filed in 2021, four subcontractors sued CPE and/or the County in four separate actions for payments on the project. (Case Nos. 22CV393704, 22CV396635, 22CV403492, and 23CV412765.)<sup>5</sup> CPE now moves to consolidate the five cases for all purposes, including trial. According to CPE, the four subcontractors have also stipulated to consolidation. The County, by contrast, states that it is willing to consolidate the cases “for the limited purposes of discovery and mediation,” but it opposes a consolidation for trial. (Opposition, p. 2:6-8.)<sup>6</sup>

The court grants the motion to consolidate for all purposes, including trial. First, these cases indisputably involve common questions of law and fact, given that they arise out of the same construction project, raise overlapping issues of liability, and involve many of the same parties and witnesses. Consolidation for all purposes would serve judicial economy and would allow the parties to adjudicate their claims and defenses in a single case rather than multiple cases. Second, the cases are still in the midst of discovery, with no depositions having yet been taken, and no trial date having been set in any of the cases.

Third, the court finds the County’s arguments against consolidation to be singularly weak:

- The County argues without citing any comparative evidence that the present lawsuit (No. 21CV376991) is “more complex” than the subcontractor lawsuits. Even if this were true, the County fails to explain how it would be adversely affected by combining the cases—if anything, the subcontractors should be the parties who take issue with the additional complexity caused by consolidation, but they have all stipulated to consolidation.
- The County also identifies other issues (e.g., the government claim presentation requirement) that are unique to this case. Again, the County fails to articulate how the need to adjudicate those issues would have any adverse impact on the County, as opposed to the subcontractors.
- The County argues that the resolution of its disputes with CPE will have no bearing on the subcontractors’ claims against CPE and the County in their cases (Opposition, p. 5:4-7 & p. 5:15-17), but the County once again fails to cite any evidence whatsoever to support this proposition. How does the County even know that there is no overlap between the cases? The argument is entirely conclusory and appears to be lacking in foundation.

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<sup>5</sup> The County is a named defendant in two out of four of these subcontractor suits.

<sup>6</sup> The court has no idea what it means to consolidate a case “for mediation.” Parties are always free to mediate multiple cases regardless of whether they are consolidated, and so this appears to be a meaningless concession.

- Finally, the County argues—again, conclusorily—that there is a “serious risk” of confusion for the trier of fact if the cases are consolidated: “the jury could easily confuse the claims and arrive at inconsistent findings.” (Opposition, pp. 6:17-7:2.) This argument is unexplained and appears to sell short the abilities of both trial counsel and Santa Clara County jurors. The court is confident that competent counsel should be able to explain the relationship between the parties and the basis for each of their claims in a straightforward and comprehensible manner. Contrary to the County’s counterintuitive claim, the court finds that the risk of “inconsistent findings” is vastly greater if the cases are tried separately rather than together.

For the foregoing reasons, the court GRANTS the motion and orders Case Nos. 21CV376991, 22CV393704, 22CV396635, 22CV403492, and 23CV412765 consolidated for all purposes.

Case No. 21CV376991 will be the lead case.

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